

26SMCV02748 26SMCV02748

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-09-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C205%2C09%2F02%2F2026

Source SHA-256: 65b382793ae199ccdebe0fe2dc941bd360b35cf793bd30fd6da36013c8619d04

Case Number: 26SMCV02748 Hearing Date: September 2, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

ADANY SANCHEZ,

Plaintiff,

v.

UBER TECHNOLOGIES, INC., et al.,

Defendants.

Case No.: 26SMCV02748

Hearing Date: September 2, 2026

[TENTATIVE] order RE:

defendant OSVALDO DEL REAL'S

motion to stay civil proceedings

pending resolution of related

criminal matter

BACKGROUND

This is a negligence and negligent hiring case. On May 3, 2026, Defendant Osvaldo Del Real (erroneously sued as Del Rio) drove his car into Plaintiff Adany Sanchez's car. (FAC ¶¶ 1, 5.) Plaintiff alleges that a few hours earlier, Del Real struck a deputy with the Los Angeles Sheriff's Department during a traffic stop and fled the scene. (Id. at ¶ 3.)

Later that day, Plaintiff alleges that Del Real accessed the Uber platform and picked up a passenger. While he was driving the passenger, police identified his car and attempted to initiate a traffic stop. (Id. at ¶ 4.) Plaintiff claims that Del Real attempted to evade the police, and during the course of that pursuit, collided with Plaintiff's car. (Id. at ¶¶ 5-6.) Del Real also held his Uber passenger hostage for hours until he was ultimately arrested. (Id. at ¶ 7.)

Plaintiff has sued Del Real and various Uber entities. The operative complaint alleges claims for (1) negligence and (2) negligent hiring, training, supervision and retention.

Del Real has been criminally charged in the Los Angeles Superior Court, case number 26IWCF00276-01, with "Assault With Deadly Weapon not a Firearm on P.O./Firefighter: Great Bodily Injury Likely (Count 001), Evading Police Officer: Disregard Safety (Count 002), False Imprisonment of a Hostage (Count 003), Possess Controlled Substance While Armed With Loaded Firearm (Count 004), Possess Controlled Substance While Armed With Loaded Firearm (Count 005), and Possession of Unmarked Firearm (Count 006, 007, and 008)" on May 3, 2026. (Chrun Decl., ¶ 4.)

This hearing is on Del Real's motion to stay civil proceedings pending resolution of related criminal matter. Del Real argues that the parallel criminal action will compel him to assert the Fifth Amendment privilege against self incrimination in this case and thereby allow Plaintiff to prevail on the merits. Accordingly, a stay is necessary in order to avoid forcing Del Real to defend the actions on two fronts, thereby ensuring his inability to fully defend any action to the fullest extent possible. In the alternative, Del Real seeks a stay of discovery against him. Uber has joined in Del Real's motion for a stay.

LEGAL STANDARD

Trial courts have the inherent power to make orders that will provide for the orderly conduct of proceedings before it and to amend and control its process and orders so as to conform to law and justice. (Code Civ. Proc. §§ 128(a), 187.) On this basis, trial courts may stay proceedings "in the interests of justice and to promote judicial efficiency." (Freiberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1484, 1489.)

This discretion allows trial courts to stay discovery, or to stay the entire case, pending resolution of parallel criminal proceedings. (Avant! Corp v. Superior Court (2000) 79 Cal.App.4th 876, 887 (trial courts have discretion to consider whether to stay civil proceedings pending completion of parallel criminal proceedings); County of Orange v. Superior Court (2000) 79 Cal.App.4th 759, 768-69 (trial court has discretion to consider whether to stay civil proceedings, and related discovery, pending completion of parallel criminal proceedings); Pacers, Inc. v. Superior Court (1984) 162 Cal.App.3d 686, 690 (trial court has discretion to consider whether to stay civil discovery pending completion of parallel criminal proceedings).)

DISCUSSION

The "Constitution does not ordinarily require a stay of civil proceedings pending the outcome of criminal proceedings." (Keating v. Office of Thrift Supervision (9th Cir. 1995) 45 F.3d 322, 324.) "In the absence of substantial prejudice to the rights of the parties involved, parallel proceedings are unobjectionable under our jurisprudence... Nevertheless, a court may decide in its discretion to stay civil proceedings when the interests of justice seem to require such action." (Id. at 324.)

In determining whether to stay civil proceedings pending completion of parallel criminal proceedings, the Court considers: “(1) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending civil and criminal litigation.” (Avant!, supra, 79 Cal.App.4th at 887.)

The Court concludes that the Avant! factors support a stay of the proceedings. The burden on Del Real is clear. He is subject to pending criminal proceedings based on the exact set of circumstances at issue in this case. He will be severely prejudiced if the civil action proceeds because civil discovery is broader than criminal discovery and could potentially expose his criminal defense to the prosecution.

Also, Plaintiff will not be prejudiced because the evidence in the criminal case will be preserved. The accident occurred only four months ago (in May 2026), and there is no indication that witnesses’ memories will fade or evidence will be destroyed particularly given the pending criminal investigation. Further, staying the civil action will not hinder judicial efficiency because a potential criminal verdict could automatically establish Del Real’s liability in this action and thereby, eliminate unnecessary discovery or motion practice. The Court can also re-evaluate whether the stay should continue based on developments in the criminal proceedings.

Additionally, there are no interests of any persons not parties to this action that will be impacted. Finally, public interest weighs in favor of a stay. Courts have recognized the public interest in ensuring that the integrity of the criminal process is not subverted, some stating that such interest is entitled to precedence over the interests of a civil litigant. (See, e.g., State Farm Mut. Auto. Ins. Co. v. Healthcare Chiropractic Clinic, Inc., 2016 U.S. Dist. LEXIS 195186, 2016 WL 9307608, at *6 (D. Minn. Apr. 26, 2016); Gerhardt, 2007 U.S. Dist. LEXIS 35481, 2007 WL 1452236, at *2.)

Plaintiff argues that the overlap between this action and the pending criminal proceeding is minimal because the criminal proceeding concerns additional issues relating to “firearms, controlled substances, alleged kidnapping/false imprisonment, and conduct toward law enforcement” while this case involves Del Real’s negligent operation of a car. (Opp. at 3-4.) But Plaintiff’s own complaint proves otherwise. But the FAC is riddled with allegations concerning Del Real’s hitting the police, his fleeing from the police, and his kidnapping of an Uber passenger (FAC ¶¶ 3-8, 29-31, 42, 38, 50)—and Plaintiff relies on that same conduct as a basis for her claims against the Uber Defendants.

Plaintiff argues that Del Real can simply invoke his Fifth Amendment privilege on a question-by question basis, and that the Court can resolve any resulting privilege disputes as they arise. (Opp. at p. 5.) Not true. “[I]n the criminal context, a defendant may not selectively invoke the Fifth Amendment to avoid cross-examination.” (Doe v. Regents of Univ. of Cal. (2016) 5 Cal.App.5th 1055, 1100, collecting cases.) Setting aside that the law does not permit selective invocation of the Fifth Amendment, Plaintiff’s proposed solution would still require Del Real to choose between invoking his Fifth Amendment privilege or providing testimony concerning conduct implicated in his pending criminal prosecution.

Plaintiff also argues that she will suffer prejudice because “witness memories fade, witnesses become unavailable, and electronic evidence including video, GPS, cellular, vehicle, and app-based records may be lost or overwritten.” But Plaintiff has not identified any witnesses beyond herself, Del Real and the Uber passenger. All three are witnesses in the criminal case whose recollections would be preserved in the criminal action. As to evidence regarding video, GPS, cellular, vehicle and app-based records, these are electronic documents that are not likely to be destroyed. Surely, the police would not overwrite or lose the evidence they need for the criminal prosecution. Further, as Defendants have notice of the litigation, they are required to preserve evidence, or risk claims of spoliation and attendant sanctions related to same.

Plaintiff next argues that discovery against the Uber Defendants can proceed “independently” because they do not share Del Real’s Fifth Amendment privilege. (Opp. at 4-7.) To be sure, Plaintiff’s discovery against Uber would not implicate Del Real’s Fifth Amendment privilege. But discovery goes both ways, and the Uber Defendants would be entitled to get discovery from Plaintiff as well, which would potentially mean that Plaintiff would have to sit for deposition twice. Also, the discovery that either party seeks would be impacted by information from Del Real, which cannot be provided until the criminal proceeding

concludes. The scope of permissible discovery would also be impacted by information from Del Real, which will make it difficult for either the Uber Defendants or the Court to decide whether Plaintiff's discovery requests are relevant or reasonably calculated to lead to the discovery of admissible evidence. All of this would create fragmented discovery and significant inefficiencies.

In sum, the Court concludes that all of the Avant! factors weigh in favor of staying the entire proceedings.

CONCLUSION

For the foregoing reasons, the Court GRANTS Defendants' motion to stay the civil proceedings pending resolution of the criminal matter. The Court sets a Status Conference re Stay Pending Resolution of Criminal Proceedings on June 3, 2027 at 8:30 a.m.

IT IS SO ORDERED.

DATED: September 2, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court